

**UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA
SOUTHERN DIVISION**

ChromaDex, Inc.,
Plaintiff,

v.

Elysium Health, Inc., and Mark Morris
Defendants.

Elysium Health, Inc.,
Counterclaimant,

v.

ChromaDex, Inc.,
Counter-Defendant.

Case No. 8:16-cv-02277-FWS-DFM
STIPULATED AMENDED JUDGMENT

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Before the court is the parties' Joint Stipulation to Amend the Judgment pursuant to "a binding settlement agreement" between the parties "to resolve this litigation (the 'C.D. Cal. Action'), including any outstanding post-judgment matters, as well as each of the . . . appeals pending in the United States Court of Appeals for the Ninth Circuit at docket numbers 24-5577, 24-5975, and 24-6918, respectively (the 'Appeals')." (Dkt. 670 at 1.) The court, having considered the record in this case, as applied to the applicable law, and for the good cause appearing therein, finds that entry of an amended judgment is appropriate. Accordingly, the court **VACATES** the August 13, 2024, judgment in this matter, (Dkt. 618), and **ENTERS JUDGMENT** in accordance with the terms stated in the parties' Joint Stipulation to Amend the Judgment, as set forth below:

1. Elysium shall pay a total of \$2,650,000 to ChromaDex to resolve the C.D. Cal. Action and the Appeals (the "Settlement Payment").

2. Elysium shall pay the Settlement Payment in two equal installments as follows: (i) \$1,325,000 shall be paid to ChromaDex on or before December 31, 2024; and (ii) \$1,325,000 shall be paid to ChromaDex on or before March 31, 2025.

3. If Elysium fails to timely pay either installment of the Settlement Payment, ChromaDex shall be entitled to recover from Elysium reasonable attorney's fees incurred to enforce the Settlement Agreement or this Amended Judgment, including against any claim that the Settlement Agreement is invalid.

4. Interest on the Settlement Payment shall accrue from December 24, 2024, at a rate of ten percent per annum, but interest accrued on the amount of the First Installment shall be forgiven provided it is timely paid; and interest accrued on the amount of the Second Installment shall be forgiven provided it is timely paid.

5. The court shall retain jurisdiction of this action for the purpose of enforcing the foregoing terms of this Stipulated Amended Judgment and the Settlement Agreement until April 30, 2025, or until further order of the court.

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1 Pursuant to Rule 58 of the Federal Rules of Civil Procedure, the Clerk is
2 ordered to enter this final stipulated amended judgment forthwith and without further
3 notice.

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5 Dated: December 27, 2024

A handwritten signature in black ink, appearing to read 'Fred W. Slaughter', written over a horizontal line.

Hon. Fred W. Slaughter
UNITED STATES DISTRICT JUDGE